

Ram Sewak v. State of U.P.

Allahabad High Court · Division Bench · 14 September 2016 · WRIT - C No. - 43230 of 2016 · **Writ disposed; Clause 6.5 decision directed; coercive action stayed.**

HEADNOTE

A writ concerning Ram Sewak's application dated 10 July 2016 was disposed of by directing the third respondent to treat and decide that application as a dispute under Clause 6.5 of the Electricity Supply Code, 2005, preferably within four weeks of receipt of the order, subject to the petitioner completing conditions and formalities mandated by law. A copy of the order was to be produced within ten days. No coercive action was to be taken until those conditions were complied with and the application was decided. All contentions on merits were kept open.

FACTUAL SUMMARY

Ram Sewak filed Writ-C No. 43230 of 2016 in the Allahabad High Court against the State of Uttar Pradesh and two others. The petition concerned an application dated 10 July 2016 pending before the third respondent in a supply-code controversy. Counsel for the petitioner and for respondent no. 3 were heard. The Division Bench did not recite the underlying billing or disconnection facts. The petitioner sought a direction to have that application decided and protection from coercive action in the meantime.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

The third respondent shall decide the petitioner's application dated 10 July 2016 as a dispute under Clause 6.5 of the Electricity Supply Code, 2005, as expeditiously as possible and preferably within four weeks of receipt of the order, subject to the petitioner complying with conditions and formalities mandated by law; the petitioner must produce a copy of the order before the competent authority within ten days; until those conditions are complied with and the application is decided, no coercive action shall be taken against the petitioner. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 DISPUTE ON THE APPLICATION DATED 10 JULY 2016

All contentions on merits are kept open. ¶ 1